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RECOGNIZING THE SACRIFICIAL VICTIM:
THE PROBLEM OF SOLIDARITY
FOR CRITICAL SOCIAL THEORY

Abstract

In this essay I discuss the problems of the concept of solidarity for critical social theory. I argue that the secular understanding of universal solidarity ignores its genuinely implied theological category of the sacrificial victim. For this reason solidarity cannot be explained sufficiently by a social theory based on the Hegelian assumption of reciprocity of recognition. It is the sacrificial victim who represents the most intense case of asymmetrical acts of solidarity.

The Problem of Solidarity for Critical Social Theory*

THE NOTION OF SOLIDARITY is both ambiguous and at the same time theoretically underdefined.¹ Thus Kurt Bayertz writes concerning the nebulous theoretical status of solidarity:

The phenomenon of solidarity lies like an erratic block of stone in the moral landscape of modernity. Its routine use is well-established, but nevertheless it remains something of a foreign body. Because of its range and importance it is immense, and at the same time unapproachable. The geologists in this landscape – the modern moral philosophers – have taken it for granted now and then, but on the whole they have simply found ways of getting round it: they were certainly unable to do anything to remove this block. However this has not prevented the concept of solidarity from being frequently and routinely employed politically. In fact its nebulous theoretical status has possibly even supported its popularity: indeed, the more nebulous its assumptions and implications, the more casually it appears to be used.²

* The kind of "Critical Social Theory" I am referring to is best represented by the work of Jürgen Habermas and Axel Honneth. Since a number of recent publications have not been translated I will cite the German sources and provide an English translation in the main text. All translations are mine except where it is stated otherwise.

¹ For an overview on see the selected bibliography by Ulrike Arndt in: Bayertz, K. [Hg]. 1998. *Solidarität*. 495-515.

² Bayertz, K. 1998. "Vorwort." In: Bayertz, K. 1998. *Solidarität*. 9.

Notwithstanding the slippery meaning of the word “solidarity”, we can approach this cumbersome phenomenon from two different though interrelated ways. First, within the framework of a critical social theory, represented by Jürgen Habermas and Axel Honneth, solidarity is conceived as a reciprocal practice. Because reciprocity is the bedrock of acts of solidarity, the question of *asymmetrical acts of solidarity* arises. The most intense form of this asymmetrical act of solidarity is when someone gives his life for someone else. The phenomenon of the sacrifice pushes this reciprocal understanding to its limits. Secondly, the concept of solidarity can be examined in a genealogical way. This genealogical approach was recently undertaken in the researches of Thomas Fiegle and Hauke Brunkhorst. Fiegle focuses on the history of the concept of solidarity while Brunkhorst examines the cultural sources of the understanding of solidarity in terms of a history of ideas. Both studies demonstrate the *theologico-political nature* of the concept of solidarity. Brunkhorst’s account moves even one step further, by proposing universal solidarity as the political agenda for democracy. As we will see, in this liberal conception of universal solidarity the theological element or connotations are completely erased. Having examined both of these approaches, in the concluding section I will take up the problem of the understanding of sacrifice and I will argue that solidarity cannot be fully explained without considering its implied theological dimension. On the basis of a consideration of this theological dimension, I will suggest a threefold conception of intersubjectivity that assumes a transcendent referent.

The first consideration (from a social philosophical standpoint) shows solidarity as the cohesive element of any society or group. This reading of solidarity as social cohesiveness can be investigated by means of a reconstructive method in social theory. But then the question arises concerning the theoretical account of agency supporting those whose social interaction bears witness to a participation in this solidarity. For example, what guarantees the social cohesion of a society?

In terms of action theory’s elaboration of the concept of solidarity, solidarity can be described, as Jürgen Habermas suggests, as *standing in for one another*.³ If we take the way adopted by Habermas and Axel Honneth of a normative social theory, then it must be possible, from a reconstruction of the practice of solidarity to reveal the universal norm behind every act of solidarity. Both thinkers develop a universal moral position for a post-traditional situation. By assuming a post-traditional situation, they also share one insight about the impact of metaphysics on morality: that in a time of postmetaphysics the normativity of a social agency must be generated from within the social

³ Habermas, J. 1991. *Gerechtigkeit und Solidarität*. 232. “This principle [solidarity] is rooted in the experience of one has to stand in for another, because all as company must be interested to maintain the integrity of their shared life (Lebenszusammenhangs) in the same way.”

practice itself; that is, without recourse to anything external or transcendent.⁴ This assumption is fundamental for the project of an autonomous moral order, because only if the source of a transcendental reference legitimating moral norms is exhausted can the problem of the immanent justification of morality arise. So, in a first step, a real action is isolated and then reformulated from the theoretical perspective of an ideal type. Then, in a second step, the rational reconstruction seeks to unfold the implied normativity of this ideal type of practice.⁵ This is then a double loop of abstraction: real actions are first theoretically reformulated as ideal types of social action in order to reconstruct, in the second step, the implied normativity of this theoretical construction.

Accepting the approach of a normative social theory as adopted by Habermas and Honneth, then, it must be possible to extract the accepted norm upon which is built the free association of individuals from the reconstruction of the normative principles of acting in solidarity. Contrary to Habermas' discourse-ethical *Ansatz*, that examines successful interactions of understanding, Honneth's critical social theory, which is based on the category of recognition, also takes into account negative practices of misrecognition.⁶ This is to say while Habermas' primary concern is to reconstruct rationally the implied normativity of positive forms of the association of free individuals (i.e. communicative actions) Honneth also examines negative forms of misrecognition. By analyzing these actions of misrecognition, the normativity of actions of recognition is revealed *ex negativo*. Honneth's enterprise can be summed up by the question: what are the theoretical conditions of recognition that guarantee individual self-determination? Solidarity is now one form of recognition or pattern of recognition, with law and love as two other forms of recognition. Solidarity is the positive form of recognition whereas humiliation and insulting acts are seen as the negative counterpart or misrecognition.⁷ Solidarity is defined as a type of relation of interaction characterized by the mutual participation of two people in one another's biography. They are in a biographical relation because of their "symmetrical appreciation."⁸ Therefore the *symmetrical appreciation* forms the heart of this theoretical approach to solidarity. Like

⁴ Habermas, J. 1993. *Postmetaphysical Thinking*. 51. Habermas, J. 1992. *Texte und Kontexte*. 127-156. In this collection of essays Habermas replies to his theological critics and develops the idea of a transcendence "from within." See also the discussion about the revival of the concept of transcendence: Schwartz, R. [ed]. 2004. *Transcendence*.

⁵ Habermas, J. 1998. *Faktizität und Geltung*. 32-45. The method of reconstruction combines ideal type and the empirical observation of social practice. Habermas, J. 2001. *Kommunikatives Handeln und detranszendentalisierte Vernunft*. As a result communicative rationality is situated in real practices. Therefore, philosophically, the method of reconstruction is situated between Kant's transcendentalism and Hegel's socio-historical embeddedness: "Sittlichkeit."

⁶ Honneth, A. 1989. *Kritik der Macht*; Honneth, A. 2001. *Leiden an Unbestimmtheit*; Honneth, A. 2003. *Unsichtbarkeit*. I will concentrate mainly on the understanding of solidarity in: Honneth, A. 2003. *Kampf um Anerkennung*.

⁷ Honneth, A. 2003. *Kampf um Anerkennung*. 211-226.

⁸ Ibid. 208.

Habermas's theory of communicative action, Honneth's social theory of recognition shares the Hegelian assumption that the ideal form of recognition is a reciprocal one.⁹ Therefore, Honneth's concept of solidarity is tailored to the reciprocal structure of acts of solidarity that can also be translated as the *symmetrical practice of standing in for one and another*. The *asymmetrical act of solidarity* (i.e. the act of *standing in for another*) would be, according to Hegel's terminology, the situation of an incomplete movement of reflection between two self-consciousnesses. The result of this incomplete reflection is an imbalance between these self-consciousnesses, namely the self-consciousness of the master and the self-consciousness of the slave.¹⁰ Because of this asymmetrical relationship between the master and the slave, the *asymmetrical act of solidarity* (i.e. the act of *standing in for another*) is understood as a deficient mode of reciprocal solidarity. Asymmetrical acts of solidarity establish the master-slave relationship and therefore bondage.

From this background Honneth writes about reciprocal solidarity, which he identifies with symmetrical appreciation:

Under the conditions of modern society, solidarity depends on the precondition of social relations of symmetrical appreciation of individualised (and autonomous) subjects. To appreciate one another in this sense means to see one another as reciprocal in terms of values, which express the skills and the talents of each other. Furthermore, these values are seen as important for a common practice. Such relations we will call "relations of solidarity", because in these relations someone does not only show passive tolerance towards the other, but they are affectively interested in the individual talents of the other person. Because, only if I care actively about the development of that other's talents, can we realise our shared goals.¹¹

The criterion of relational solidarity is the symmetrical appreciation of at least two individuals who engage with each other.¹² The engagement characterized by solidarity is the acknowledgement of the otherness of the other in such a way that a constructive cooperation is possible. This definition reinforces the assumption that self-determination and the development of the autonomous individual are only possible through social relations.¹³ Thus relational solidarity, as a form of reciprocal recognition, is the condition for the possibility of developed personhood. The ideal type of solidarity is always this reciprocal one. It is the ideal realization of a

⁹ The *locus classicus* of the ideal reciprocity of intersubjective recognition is Hegel's essay on the relationship between the master and the slave. Hegel's understanding of the ideal case of recognition of one self-consciousness by another requires the equal movement of both: "*Jedes ist dem anderen die Mitte, durch welche jedes sich mit sich selbst vermittelt und zusammenschließt, und jedes sich und dem Anderen unmittelbares für sich seiendes Wesen, welches zugleich nur durch diese Vermittlung so für sich ist. Sie anerkennen sich als gegenseitig sich anerkennend.*" Hegel, G.W.F. 1987. *Phänomenologie des Geistes*. 140-149. here 142.

¹⁰ Hegel, G.W.F. 1987. *Phänomenologie des Geistes*. 145.

¹¹ Honneth, A. 2003. *Kampf um Anerkennung*. 209-210.

¹² Ibid. 208.

reciprocal and symmetrical *standing in for one another*.

The problems begin when we have to consider the case that is more the rule than the exception: asymmetrical acts of solidarity. For a theory of reciprocal relations based upon recognition, the fact that there are examples of radically asymmetrical forms of relational solidarity is indeed both an exception and therefore a challenge. In situations of intense solidarity, i.e. when someone risks his or her life for someone else, the symmetry of the interaction is *per se* suspended. Regardless of the question of the appreciation of the other person, asymmetrical acts of solidarity challenge a theory based on the normativity of reciprocal forms of recognition. This predicament is evident in the forms of what Habermas calls supererogatory action (with reference to altruistic actions). The etymology of the word indicates that supererogatory actions are conceived in terms of the economic logic of the market: supererogatory actions, we might say, cannot be "cashed in." Habermas illustrates the problem of radical acts of asymmetrical solidarity by describing the dilemma of three people in a boat that can only carry two:

[T]his dilemma can only be "solved" through a sacrifice. A sacrifice, which nobody can expect from someone – and consequently this sacrifice must be made voluntarily. We cannot give a theoretical rationale for supererogatory actions as a moral duty.¹⁴

The meaning of the use of sacrifice here is a secularized one. Habermas warns of any theological associations, when he says about his project of discourse ethics:

The premise for discourse ethics is a strictly postmetaphysical thinking. Therefore discourse ethics cannot integrate the whole potential of meaning expressed by classical ethics and their soteriological (*heilsgeschichtliche*) and cosmological understanding of justice.¹⁵

In order to emphasize the *a*-theological understanding of sacrifice, Habermas refers to supererogatory actions. If we accept the postmetaphysical condition of thinking, then we might also call this sacrifice a radical act of asymmetrical solidarity. But, this secular or postmetaphysical understanding of solidarity bears difficulties. Even Axel Honneth admits that the conditions for solidarity are still not theoretically explained.¹⁶ But what are the difficulties with framing the phenomenon of solidarity in terms of a theory of society under postmetaphysical circumstances? Is the reason simply that the concept of asymmetrical appreciation is not complex enough? Or do we have to

¹³ Habermas, J. 1992. *Nachmetaphysisches Denken*. 187-241.

¹⁴ Habermas, J. 1991. *Gerechtigkeit und Solidarität*. 235.

¹⁵ Habermas, J. 1991. *Gerechtigkeit und Solidarität*. 235

¹⁶ The problems of solidarity in terms of his own theoretical Ansatz are discussed in: Honneth, A. 2003. *Kampf um Anerkennung*. "Nachwort."

admit that the phenomenon of radical act of asymmetrical solidarity – including the sacrifice of one's life – *a priori* transcends the normative framework of a theory of society that operates on postmetaphysical premises? I will argue that this is exactly the case.¹⁷ The understanding of solidarity as the normative basis for a theory of society, as my argument goes, is derived from the Christian notion of *caritas*. Due to a certain historical process, the theological category of the sacrificial victim has been displaced. This historical development goes hand in hand with the *humanist immanentization* of the twofold Christian command to love God and your neighbor. By *humanist immanentization*, I mean the fact that relations between human beings became more important than the transcendental relationship involved in the love for and of God. This is to say, on a more abstract level, intersubjectivity is constituted just horizontally between at least two subjects. This horizontalization ignores the transcendent referent, which I will argue is needed in order to conceive asymmetrical acts of solidarity. But before I unfold this argument, let us examine the second approach to the concept of solidarity, namely the genealogical investigations.

The Theologico-political History of the Concept of Solidarity

The history of the concept of solidarity has mostly been uncovered thanks to the researches of Thomas Fiegle.¹⁸ There are two significant aspects of this history according to Fiegle. First, the German word for “solidarity” is the result of its transferal from the French “*solidarite*.” Thus the history of the concept is developed in the contexts of two languages and cultures, which are historically distinct.¹⁹ Secondly, within these different languages the concept of solidarity is forged in the exchange between theological and political ideas. I will focus my examination on this exchange. As a result of this examination we will see the extent to which the concept is a theologico-political hybrid. That is to say, the concept has both religious and political roots.

¹⁷ I agree with René Girard's assumption, that we also have to take into account religious phenomena to explain the social reality of violence. Girard's famous thesis of the “surrogate victim” (Girard, R. 1989. *Violence and the Sacred*) is concerned with the sacrificial victim in order to explain the intrinsic relation between acts of violence and the nature of the sacred (Ibid. 31). In the argument proposed here, I am not questioning the role of the sacrificial victim for a community as such. Nor do I think, that if the sacrificial victim is needed in primitive societies (that is a society without a legal system) to interrupt the inevitable vicious cycle of revenge (Ibid. 23), that we can subsequently compare these societies to civilized societies (i.e. societies regulated by a legal system). The main argument presented here wants to take the postmetaphysical condition, as stated by Habermas, Honneth et al. of Western culture seriously and tries to demonstrate its limits in terms of intersubjective acts of solidarity.

¹⁸ Fiegle, T. 2003. *Von der Solidarität zur Solidarität*.

¹⁹ For the methodology of a history of concepts used here see: Fiegle, T. 2003. *Von der Solidarität zur Solidarität*. 12-26.

Solidarity was originally used as a *terminus technicus* in law. The French substantive “*solidarite*” comes from the Latin adjective *in solidum* (for the whole), which is itself rooted in the discourse of Roman law. In this context, solidarity means a group who owes money as a collective body.²⁰ The original meaning is still preserved in the German expression *Solidarobligation* or *solidary obligation*, the English word for “joint debt.”²¹ It defines the responsibility of every single debtor for the collective debt, but one can also cancel it on behalf of all the others.²² The connotations of one who *stands for the others* is subsequently referred to by ultraconservative thinkers like Joseph de Maistre and Francois Rene Chateaubriand at the beginning of the nineteenth century. They employ it as a political term in order to describe the social bonds of a group, i.e. collective liability. The use of solidarity for counter-revolutionary means is accompanied by a theological reframing of the concept. That the collective liability for a debt can be relieved by a single person called for a Christological interpretation. For the Christological parallel is that one person redeems humankind of their collective guilt. It is in the context then of the French Revolution that the modern concept of solidarity is forged. Between the liberal parties, on the one hand, and the conservative, counter-revolutionaries, on the other, the concept takes shape.²³ In the beginning, it is the conservatives and Catholic theological-inspired thinkers who coin the term. At the bottom of this conservative thinking lies the idea of an order created and maintained by God.²⁴ It is a natural order comparable to an organic body suffused by God, and therefore everyone has to obey such an order by subjecting himself or herself to the authority of this claim. The most significant political point is that the theological and metaphysical idea of the order is consequently represented by an authoritative state with the monarch as the supreme sovereign representative of the divine power. Thus solidarity was originally used by conservatives to designate the social cohesion of the citizens of a state whereby the state itself was conceived as a manifestation of the divine order. Solidarity becomes a metaphor of the divine interdependency of human beings.²⁵ It was Joseph de Maistre who transformed the concept of solidarity by taking up the Augustinian notion of the two cities. De Maistre proposes two forms of solidarity, following Augustine’s construct of the perfect heavenly city and the imperfect earthly city. The solidarity among people of a particular nation echoes the ideal solidarity in heaven. This Augustinian idea of the two cities is crucial for the political understanding of universal solidarity, as I will demonstrate later.

²⁰ Fiegle, T. 2003. *Von der Solidarité zur Solidarität*. 31.

²¹ For the English history of the concept of solidarity see: *Oxford English Dictionary Online*. 2004. <<http://dictionary.oed.com/>>

²² Wildt, A. 1995. “Solidarität.” 1004.

²³ Wildt, A. 1995. “Solidarität.” 1004.

²⁴ Fiegle, T. 2003. *Von der Solidarité zur Solidarität*. 41.

²⁵ Fiegle, T. 2003. *Von der Solidarité zur Solidarität*. 43.

Therefore the first phase of the process of forging the concept of solidarity according to a genealogical method is mainly characterized by the transfer of a juridical concept into a conservative theory for political restoration. To borrow a phrase from Carl Schmitt, solidarity was a key-concept of the political theology of the French counterrevolution. This means that "solidarity" initially was used to name the resistance to the ongoing social and political changes. To emphasize the solidarity of the people was identical with arguing for an authoritative nation state, a hierarchically ordered society with the king as its sovereign. To be in solidarity therefore meant, to be a member of a national body which represents the divine order of society.

It was Pierre Leroux who subsequently elaborated the concept of solidarity philosophically. Leroux stands on the threshold of the absolute separation of politics from religion and also, with respect to the historical context, on the threshold of the emancipation of liberalism from its conservative and theological counterpart. In his book "*De l'humanité*"²⁶ (published in 1840) he outlined the concept of solidarity through a critique of the Christian double command to love. This critique of the Christian command of "love God" and "love the neighbor" served as the basis for the further secularization of the concept of solidarity. In particular, Leroux's critique targets the vertical and horizontal structure of the command to love "God" and the "neighbor." He blames the Christian tradition for misinterpreting the genuine meaning of the command. In the tradition, as his argument goes, the love of God is overemphasized whilst the love among humans is denigrated. Furthermore, the Christian tradition erases the moment of self-love entirely. Consequently he suggests a definition of solidarity that he thinks best expresses the authentic meaning of the command of love:

Love God in You and in the Other / that is the same as / Love yourself
through God in the Other / which is identical with / Love the Other through
God in You.²⁷

He then unfolds a threefold balance (self-God-other) in the meaning of the command Noto love by emphasizing the moment of self-love and love of the other. Leroux is convinced that this horizontalization of the vertical dimension of the Christian command to love represents its authentic meaning. Solidarity is now concerned with reconstructing the meaning and structure of charity. This reconstructed meaning of solidarity is constituted *by the love of the self and love of the other*. This double structure seems to anticipate the very debate about individualism versus solidarity (in the sense of community).

By this horizontalization of the Christian notion of charity the theological

²⁶ Fiegle, T. 2003. *Von der Solidarité zur Solidarität*. 49.

²⁷ Leroux, P. 1840. *De l'humanité*. 209.

dimension was eliminated, or the theological content dissolved into a *immanent humanism*. Leroux's own coining of the philosophical and liberal understanding of solidarity still remains within a theological framework,²⁸ simply because his understanding of solidarity intends to restore critically the authentic theological meaning of Christian charity. But by eliminating the moment of God's transcendent love he also eliminates the implied theological category of the sacrifice. For Christian theology the love of God, in the double sense of a *subjective* and *objective genitive*, finds its ultimate expression in God's incarnation and finally his self-sacrifice in Jesus Christ.

Despite Leroux's humanization of the concept of Christian charity his successors have not remembered him accurately, maybe because his position remained too close to theology for secular comfort.

The Secularization of the Understanding of Christian Solidarity

In the previous section we noted that the etymology of "solidarity" reveals the theologico-political context of its origin. In this section we will examine the *liberal idea* of a *universal solidarity with strangers* i.e. the social cohesion among *all* people. This idea of a universal solidarity is deeply rooted in the claim of Christian charity now extended even to one's enemy.

Hauke Brunkhorst is one of the key contemporary social theorists who has intensively discussed the idea of universal solidarity.²⁹ In his first study he develops the idea of universal solidarity within the framework of an intersubjective social philosophy and in his most recent study provides a genealogical account of the cultural and religious origin of the idea of universal solidarity.

The core of Brunkhorst's enterprise is to argue for the possibility of universal solidarity and to work out the political conditions for the possibility of its realization. This realization he argues, can only be provided by the political conditions of the constitutional democratic state. His attempt to demonstrate this is carried out on two levels, each level corresponding to one of his studies.

On the first level, Brunkhorst examines the notions of particular and group-specific solidarity in the legacy of Mead and Dewey. He focuses his critique on their understanding of solidarity by drawing attention to a more complex

²⁸ Ibid. 62-63.

²⁹ Brunkhorst, H. 1997. *Solidarität unter Fremden*; Ders. 2002. *Solidarität*.

and universal idea of solidarity in the work of Talcott Parson.³⁰ He concludes his social philosophical examination (1997) with a plea for the importance of the utopian idea of universal solidarity with strangers for the sake of democracy. On this level of his examination, the author points out that without the *utopian* idea of universal solidarity democracy would end.³¹ On the second level of his work on solidarity, undertaken in the book published in 2002, Brunkhorst examines the sources of universal solidarity in terms of a history of ideas. He concludes this second study by stating that since the French Revolution the “normative horizon of the citizen is that of the global citizen (Weltbürger).” And therefore everyone as a global citizen has the *moral duty to realize* “the practical project of an egalitarian and self-determined solidarity with strangers.”³²

Through comparing the conclusions of Brunkhorst’s two studies, a development in his understanding of universal solidarity is evident. Starting from the claim that the utopian idea of universal solidarity is the condition for the possibility of democracy, the author arrives (five years later) at the point where the idea of universal solidarity has to be realized as a moral duty within the framework of the legal democratic state. Nevertheless the crucial problem of how particular solidarity can be developed into a political project of universal solidarity remains. Brunkhorst describes the fundamental problem, borrowing a phrase from Hegel: the central difficulty with a moral progress (*Fortschritt*) in the name of freedom is “the possibility of its universalization i.e. the shift from *solidarity among friends* to *solidarity with strangers*.”³³

The shift from solidarity among friends to solidarity with strangers summarizes the problem of universal solidarity and, at the same time identifies one source in the history of the idea of solidarity that has yet to be taken into account. If the political project of the realization of universal solidarity with strangers stems from solidarity among friends, then one has to clarify what the cultural roots of this understanding of friendship are. Brunkhorst starts with the discussion of the “Aristotelian solution to the Platonic problem of social integration”³⁴, because Aristotle’s ethics understood friendship in terms of a network among male Aristocrats within the polis. This understanding was still important for the emerging republican solidarity of the citizens during the formation of the nation-state. But the problem of this classical model of friendship is its exclusivity and particularity. Since only Aristocratic and wealthy men were eligible to be friends whose friendship constituted the social bond of the community, the politics of friendship was elitist and, furthermore, linked to personal wealth.

³⁰ Ibid. 75.

³¹ Ibid. 143.

³² Brunkhorst, H. 2002. *Solidarität*. 110.

³³ Brunkhorst, H. 1997. *Solidarität unter Fremden*. 8.

³⁴ Ibid. 26.

But it was also a very particular understanding of solidarity among friends, because the borders of the polis were at the same time the limits of friendship and the limit of one's moral duty of solidarity with others beyond these borders. The "ideal form of the solidarity of classical republican community of citizens", so Brunkhorst writes, "is tied to the upper class and is urbanocentric."³⁵ Contrary to the Aristocratic-particularistic solidarity of the citizens, the rise of Christianity gave birth to a universal idea of mutual responsibility inscribed in *caritas*.³⁶ Christian *caritas* expressed in the command of "love your neighbor as yourself" and practices of charity meld with the classical model of friendship. It is in this melding that solidarity with strangers emerges. It is important here, as Brunkhorst argues, that only the radicalization of the idea of *caritas*³⁷ - i.e. its inclusion of all people even the enemy - guarantees the universality of the idea of solidarity.

In a remarkable *tour de force* through the history of theological ideas, beginning with the critique of kingship in the Old testament going up to the theologico-political treatises of Thomas Aquinas, Brunkhorst then outlines a Christian understanding of universal solidarity. It is not necessary to discuss this theological journey in detail. I will rather concentrate on his conclusion concerning what Christian solidarity should be. Christian solidarity, according to Brunkhorst, is derived from the biblical command to love your neighbor. It is, on the one hand, universal but, on the other, also idealistic. Furthermore, for Brunkhorst, the main problem with Christian solidarity is its *apolitical nature*.³⁸ With respect to this apolitical nature, he juxtaposes Christian solidarity to the classical model of the politics of friendship among citizens. The classical model of friendship constituted the public sphere and therefore Greek politics. In Brunkhorst's view the political and particular understanding of Greek friendship is opposed to the apolitical and universal understanding of Christian charity. In sum, the two cultural strands constituting the idea of universal solidarity are the republican solidarity among citizens, on the one hand, and Christian charity including its legal transformation of Roman law, on the other. The tradition of republican solidarity among citizens contributes to the political consciousness of solidarity among friends.³⁹ But, as we have seen, this concept of solidarity is still elitist and so the universal claim of solidarity from the Christian tradition is needed to supplement it.

The concept of friendship in Aristotle's understanding of politics is indeed elitist because true friendship is only possible among free citizens who can recognise one another as citizens of virtue. The condition of this kind of friendship is therefore the mutual recognition and appreciation of good

³⁵ Ibid. 36.

³⁶ Ibid. 40.

³⁷ Ibid. 40.

³⁸ Ibid. 40.

citizens. Contrary to that, the religious command of charity is genuinely abstract and general. The command says: "Love your neighbour as yourself." But the neighbour is principally everyone we might meet wherever and whenever. Regardless as to whether he is rich or poor, a free citizen or a slave, a man of virtue or a criminal. It is of no importance whether he is our friend, neighbour or a stranger insofar as the universalising shift from love of the friend to love of the enemy is implied in the Christian command. Moreover, this is the genuine meaning of the call to love the enemy as it was spoken of in the Sermon on the Mountain. The *normative point* of the love of the enemy is its *universalisation*.⁴⁰

On top of the element of political citizenship and the element of universal Christian charity, interpreted as the immanent love between people, the driving force of social cohesion, a legal element is also needed. The development of the law guarantees the possible realization of universal solidarity in political terms, i.e. in terms of the legal democratic state. The transformation of Roman law, mentioned earlier, is rooted in the development of canon law, and, according to Brunkhorst, this culminates in Kant's concept of the global citizen and law-bound community (*Rechtsgenossenschaft*).

The step from description to prescription is necessary because universal solidarity is the "normative horizon" and the "moral duty to realize it is a political project" for the global citizen. The precondition of universal solidarity as a political maxim is to combine the two cultural strands constituting the idea of universal solidarity.

By crossing these two strands from the history of ideas, Brunkhorst ties the republican solidarity of citizens into a secularized and legally managed Christian charity. As a result of this ideological weaving, the author can present a historically situated idea of universal solidarity. The revolutions of the 18th century are the events in which this ideological cross over took place.

In the outbreak of the revolutions of 1776 in North America and 1789 in Paris, the political and public-legal idea of republican friendship among citizens' *concordia*, of the alliance of citizens (Rousseau, Kant), the *citoyenneté*, *citizenship*, *civil society* is renewed. It was freed from the Aristocratic ethos of the elite (*Virtuosenethos*) of urban life. The Aristocratic-elitist ethos is replaced by the completely secularised concept of fraternity, stripped of its theological content. What remains is the moment of freedom vivid in civil alliances. What is destroyed is its unequal distribution. In the Christian understandings of fraternity equality remains, but now its otherworldliness disappears. Thus, fraternal equality is realised on the new *niveau* of the

³⁹ For the relationship between politics and friendship in classics see: Meier, C. 1995. *Die Entstehung des Politischen*.

⁴⁰ Brunkhorst, H. 1997. *Solidarität unter Fremden*. 73-74.

constitutional state in terms of civil freedom.⁴¹

But is it possible to create universal solidarity by crossing two cultural strands of ideas? In other words: Is the ideological crossing enough to put the idea of universal solidarity into a practical and political project? The question is whether the French and the American revolutions are the historical events that bring about this ideological crossing or whether the crossing is an ideological interpretation *post eventum*. There is a significant difference between the interpretation of the constitution of 1776 and 1791 and the interpretation of the revolutions that led to them.

On a theoretical level the suggestion of crossing republican solidarity among citizens with Christian charity can be already found in Rousseau. The precondition for this ideological crossing is a complementary relationship between the republican and Christian strands. Ultimately the two complementary elements (i.e. universality and political character in the sense of liberalism) should form the political basis for the idea of universal solidarity. Rousseau expresses this complementary relationship by unmasking the concept of a Christian republic as a contradiction *in se*. Interestingly his argument is based on the schizoid nature of the obligation to solidarity that would inevitably emerge in such a Christian republic.⁴² Christians, according to Rousseau, are obliged to be in solidarity with the Christian community. And since Christendom is not related to a political body⁴³ in any form, the nation would lack the binding social cohesion.

But this religion, having no particular relation to the body politic, leaves the laws in possession of the force they have in themselves without making any addition to it; and thus one of the great bonds that unite society considered in severally fails to operate. Nay, more, so far from binding the hearts of the citizens to the State, it has the effect of taking them away from all earthly things. I know of nothing more contrary to the social spirit.⁴⁴

Rousseau is fully aware of the necessary emotional commitment to the nation, which he thinks is impossible for Christians because of a conflict of interests. The force of emotional commitment set free from the Christian religion is the key idea in his proposal for a "civil religion." He rejects national religion when he writes referring to Origen's *dictum extra ecclesiam nulla salus est*:

⁴¹ Brunkhorst, H. 2002. *Solidarität unter Fremden*. 87.

⁴² Rousseau, J.-J. *The Social Contract*. 112.

⁴³ Ibid. 111-122. "Christianity as a religion is entirely spiritual, occupied solely with heavenly things; the country of the Christian is not of this world. He does his duty, indeed, but does it with profound indifference to the good or ill success of his cares. Provided he has nothing to reproach himself with, it matters little to him whether things go well or ill here on earth. If the State is prosperous, he hardly dares to share in the public happiness, for fear he may grow proud of his country's glory; if the State is languishing, he blesses the hand of God that is hard upon His people."

⁴⁴ Ibid. 111.

Now that there is and can be no longer an exclusive national religion, tolerance should be given to all religions that tolerate others, so long as their dogmas contain nothing more contrary to the duties of citizenship. But whoever dares to say: "Outside the church is no salvation", ought to be driven out from the State, unless the State is the Church, and the prince the pontiff.⁴⁵

Civil religion should guarantee both the stability of Christian solidarity and absolute loyalty to the nation. Brunkhorst's idea of the ideological crossing has echoes then of Rousseau's argument. The idea of a universal solidarity, which is the backbone of a political community, is a result of the combination of civil engagement and the universal appeal of Christendom.

But, one might ask, why is Christian solidarity viewed as apolitical? Or as Rousseau puts it; "religion has no relation to the body politic." A key-figure in Brunkhorst's thesis of the apolitical nature of Christianity is Augustine and his book *De civitate Dei*. In *De civitate Dei*, according to Brunkhorst, Augustine develops an ideology in which the terrestrial community is opposed to the celestial community. Augustine's ideology cuts all bonds between the *civitas terrena* and the *civitas dei*. As a consequence Augustine "spiritualizes the Old Testament motif of a liberation theology." "This process of spiritualization leads inevitably to a radical depreciation of mundane life and ultimately to indifference of the other and to the other's concrete bodily suffering."⁴⁶ This overestimation of the *civitas dei* and the subordination of the *civitas terrena* lie in Augustine's neoplatonism. Brunkhorst summarizes this Augustinian ideology, when he writes:

Despite the obvious ideological character of the orthodox-Augustinian mainstream-Christendom it still remains an ideology in the twofold understanding of Marx's expression of the tranquillising "opium for the people", on the one hand, and the "sigh of the oppressed creature" on the other. It is a sigh of "protest" against misery initiated by society [...] The potential for Christian solidarity to transform social order is ambivalent. It destroys or relativises the solidarities of naturally forged social groups as well as the solidarity of particular communities. But, that is why it opens up the possibility for the creation of a universal polis-community and a more abstract sense of solidarity - of a "new social community on a purely religious basis."⁴⁷

Brunkhorst appreciates the advantage of the claim of universality in Augustine's conception, but, at the same time, he rejects the spiritualization of this claim and even the religious basis for the universal polis-community. In other words, the universality of the Christian solidarity of the *civitas dei* in its perfection is valued, but only if it is then secularized and implemented in

⁴⁵ Ibid. 115.

⁴⁶ Brunkhorst, H. 2002. *Solidarität unter Fremden*. 66.

⁴⁷ Ibid. 68.

the *civitas terrena*. Only the implementation would give back to this secularized Christian understanding of solidarity its political character. But the dualistic juxtaposition between *civitas dei* and *civitas terrena*, between *societas perfecta* and *societas defecta*, between a *particular solidarity* of people who are living according to *human law* and the *universal solidarity* among people living according to *divine law*, ignores one important doctrine in Augustine. Brunkhorst's critique of Augustine erases the idea of a *mediating instance* between *civitas dei* and *civitas terrena*. But Augustine recognizes and emphasizes this *mediating instance*. Namely, there is the church as a terrestrial institution, which moves inexorably towards its perfection through history. It is the "pilgrim City of Christ the King."⁴⁸ Between the ideal and the real community Augustine develops his ecclesiology. This ecclesiology is also linked with his Christology through the doctrine of incarnation and the church as the incarnate body of Christ. In fact, in Augustine, there are not only two kind of cities as Brunkhorst suggests, but three types of city: namely, the city of God, the cities of the world, and the city of Christ the King, that is the church. Only by ignoring the City of Christ the King, can Brunkhorst make the claim about the apolitical nature of Christianity. Augustine himself writes:

Such is the reply [...] which the redeemed household of servants of the Lord Christ – the pilgrim City of Christ the King – may return to its enemies. She [the church] must bear in mind that among these very enemies are hidden her future citizens; and when confronted with them she must not think it a fruitless task to bear with their hostility until she finds them confessing the faith. In the same way, while the City of God is on pilgrimage in this world, she has in her midst some who are united with her [...]⁴⁹

Augustine addresses the Roman Empire in his ecclesiology and he develops a political theology of the church as political body with respect to it. However, for Augustine, deciding who is and who is not part of this political body continues to be a problem. There is a distinction between a friend and an enemy that accords with the definition of the political in Carl Schmitt.⁵⁰ Schmitt is the archenemy of liberalism. He also offers both a radical critique of Brunkhorst's understanding of universal solidarity with strangers as well as Habermas moral-political intention, as Richard Bernstein calls it⁵¹, of communicative understanding.⁵² For Schmitt, the nature of the political is constituted by the possibility of having to decide between the enemy and the friend. In fact, Schmitt derives this definition of the political from Augustine. Furthermore, for Schmitt, it is the theological element involved here that

⁴⁸ Augustine. 1986. *The City of God*. 45.

⁴⁹ Augustine. 1986. *The City of God*. 45.

⁵⁰ Schmitt, C. 1996. *Der Begriff des Politischen*. 26-45.

⁵¹ Bernstein, R. 1983. Beyond Objectivism and Relativism.

⁵² Schmitt rejects the "romantic" idea of decision making by discussion and therefore rejects parliamentarianism. See: Schmitt, C. 1998. *Politische Romantik*. Schmitt, C. 1996. *Die geistesgeschichtliche Lage des Parlamentarismus*.

makes politics possible. In his book *Politische Theologie II* (1970) he rejects the liberal distinction between religion and politics by criticizing a dualistic reading of Augustine.⁵³ Brunkhorst and Schmitt agree on one point though. Both thinkers want to turn an idea into a political project. Brunkhorst argues for the realization of universal solidarity with strangers in terms of democratic politics, whereas Schmitt seeks to create an authoritative state of Christianity.⁵⁴ As we saw, Brunkhorst has to erase Augustine's own political intentions and, subsequently, any conservative revolution proposed by Schmitt with reference to de Maistre. For he derives universal solidarity from Christianity, but he wants to give universal solidarity a political meaning in terms of secular liberalism and humanism. Here again we can see how deeply the notion of solidarity is tied into theology and politics. The gap between Schmitt and Brunkhorst, between Conservatism and Liberalism, between liberal democracy and the authoritative state, is the same gap between Leroux's understanding of solidarity and de Maistre's concept of solidarity. It is the gap between the French Revolution of 1789 and its aftermath in the conservative counterrevolution.

The bias of the idea of a universal solidarity is towards liberal politics and a secularized Christian understanding of charity. The premise for universal solidarity is the assumption of a de-politicized theology in the legacy of Augustine's *De civitate dei*. From de Maistre, who coined the expression of solidarity, up to the conservative revolution of the Weimar republic, represented by Carl Schmitt, Christian solidarity was paralleled with the political project of establishing a Christian Empire. Consequently this Christian Empire would have boundaries and the solidarity among these people would be a particular one. If we accept the liberal notion of universal solidarity, even in the Kantian sense of a regulative idea, then we have to agree with Brunkhorst and with Rousseau's idea of the necessary secularization of Christian solidarity.

The Threefold Structure of Intersubjective Relations

In conclusion, I wish to return to the problem of asymmetrical acts of solidarity. Can the liberal and secularized understanding of solidarity cope with the fact of asymmetrical acts of solidarity? In other words, does the political project of universal solidarity proposed by Brunkhorst offer a

⁵³ Schmitt, C. 1996. *Politische Theologie II*. See also the critique of the idea of political theology by Blumenberg: Blumenberg, H. 1999. *Legitimität der Neuzeit*. 99-108.

⁵⁴ Coming from an ultraconservative catholic background, Schmitt clearly advocated the idea of a Christian *Reich*. For the historical circumstances, how Schmitt radicalized the concept of the authoritative state to the total state and its realization under the Nazi regime see: Koenen. A. 1995. *Der Fall Carl Schmitt*. 225-505.

solution to the dilemma of the three people in a boat only made for two? How does Brunckhorst's view of universal solidarity reply to the individual case of the sacrificial victim? It cannot. The reason for this is that he is not able to go beyond the problem as it stood for Habermas and Honneth. Asymmetrical acts of solidarity can only be understood if intersubjective relations are not conceived on a purely horizontal basis. This is to say we are forced to assume a transcendent reference in order to understand why someone gives his or her life for someone else. And this assumption is a theological one. Does this mean, as we have seen in the previous section, that in making that theological assumption we necessarily advocate the way of Schmitt and the conservative idea of a Christian state? I don't think so. But it is important to keep the political history of the concept of solidarity in mind. It is crucial to be aware of the gap between the liberal legacy in the constitutionalism of the French revolutions and Christian conservatism. But, at the same time, it is important to overcome this dichotomy.

Habermas once admitted that theology bears a semantic potential that offers a surplus of meaning compared to philosophy. Concerning the coexistence of religion and philosophy, he says:

This ongoing coexistence throws light on a curious dependency of a philosophy that has forfeited its contact with the extraordinary. Philosophy, even in its postmetaphysical form, will be able neither to replace nor to repress religion as long as religious language is the bearer of a semantic content that is inspiring and even indispensable, for this content eludes (for the time being?) the explanatory force of philosophical language and continues to resist translation into reasoning discourses.⁵⁵

This surplus meaning with reference to the problem of solidarity pertains to the assumption of a transcendent reference in a relationship between two people. The sacrifice of someone's life for another person transcends the logic of reciprocal appreciation. We cannot understand why someone gives his life for someone if we do not assume that the relationship between these two people is actually constituted by a third party. It is true that this sacrifice cannot be demanded morally, as Habermas says. But if we assume that one person gives his life for another person, then we have to enquire into his or her reasons for doing that.⁵⁶ Maybe, in the end, the motivation for radical acts of solidarity is inscrutable.

What I want to suggest here, on a more abstract level, is a threefold structure for intersubjectivity, which gives a better account of asymmetrical acts of solidarity. In this triangular relation, constituted by two people and a third

⁵⁵ Habermas, J. 1993. *Postmetaphysical Thinking*. 51.

⁵⁶ A similar argument is developed by Peukert, when he criticizes Habermas' theory of communicative action for not taking into account the responsibility towards prior generations and what they did for us. Peukert, H. 1988. *Wissenschaftstheorie*

party, this third party is a transcendent referent.⁵⁷ By assuming this transcendent referent to which we owe intersubjective relations, no moral judgment is made. A suicide bombing can be seen as a radical act of asymmetrical solidarity just as well as the sacrifice someone makes for the sake of the life of others. This ambivalent nature of the transcendent referent leads once more to the theological question concerning what kind of transcendent referent this is and how we have to act in accordance with it. The narratives, which we find in all religions, about this transcendent referent are what I would term the theological surplus of meaning. This theological surplus of meaning entails a fundamental paradox for a reciprocal construction of intersubjectivity. If we consider Christian theology, then the asymmetrical act of solidarity (the sacrifice of the sacrificial victim) is not a deficient mode of solidarity but the very condition of its possibility. With reference to Habermas and Honneth, this understanding of the constitutional quality of asymmetrical acts of solidarity is not just a negative form of misrecognition or a distortion of the ideal. Asymmetrical forms of solidarity are real acts making the ideal forms of solidarity possible. But who can take up the responsibility for this sacrificial victimage?

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⁵⁷ This triangular structure of intersubjectivity is also suggested by Emmanuel Lévinas. See: Lévinas, E. 1971. *Totalité et Infini*. 45-108.

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